

Om Prakash Sahani v. B.K. Singh, Executive Engineer, Urban Electrical Distribution Unit-2

High Court of Judicature at Allahabad · Single Judge · 17 February 2020 · Contempt Application (Civil) No. 421 of 2020 · **Contempt disposed and notices discharged; stay held limited to the historical 80-month demand; current-usage bill to be issued on application in accordance with law; merits left to the pending writ.**

HEADNOTE

Disposing of civil contempt alleging breach of an interim stay of coercive recovery of an 80-month slow-meter demand, the Allahabad High Court held that the 10 April 2018 stay in W.P. No. 8432 of 2018 covered only that historical demand and did not restrain current billing or disconnection for unpaid current consumption. Finding no wilful defiance, it discharged notices, left the Supply Code meter-testing challenge to the pending writ, and directed that if the consumer applied within ten days for a current-usage bill, a fresh or revised bill be furnished in accordance with law within three weeks.

FACTUAL SUMMARY

Om Prakash Sahani moved civil contempt alleging wilful defiance of the 10 April 2018 interim order in Writ Petition No. 8432 of 2018, which stayed coercive steps on an 80-month slow-meter electricity demand, the consumer having pleaded that Supply Code, 2005 meter-testing procedure had not been followed. The Executive Engineer stated the stay covered only that historical demand; current dues were unpaid; supply was disconnected and later restored after a Rs. 9 lakh deposit on 6 December 2019; and the writ remained pending.

HOLDING-UNITS

INTERPLAY · UP-2005

current-billing-not-restrained-by-stay-on-historical-demand

HOLDING

The 10 April 2018 interim order in W.P. No. 8432 of 2018 restrained coercive steps only against the demand for the previous 80 months; it did not restrain billing or disconnection for current consumption, which the consumer must pay as per law. Finding no wilful defiance, the Court disposed of the contempt and discharged notices. The applicant was to apply within ten days for a bill of current usage, and on such application the Executive Engineer was to decide it and furnish a fresh or revised bill in accordance with law within three weeks. Remaining issues were left to the pending writ. ¶ 1

PRINCIPLE TAGS

interim-stay-on-historical-demand-does-not-bar-current-billing The stay of coercive steps on the 80-month slow-meter demand did not freeze current billing or disconnection for unpaid current use; contempt was not made out, and a current-usage bill was to be issued on application in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 80-MONTH SLOW-METER DEMAND WAS UNSUSTAINABLE FOR NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005 DEFECTIVE-METER TESTING PROCEDURE

Left to the pending writ petition (W.P. No. 8432 of 2018). ¶ 1

